

Court No. - 21

Case :- WRIT - C No. - 5263 of 2024

Petitioner :- Neetu Devi

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Seema Pandey, Vivek Shukla

Counsel for Respondent :- C.S.C., Manu Ghildyal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Shri Manu Ghildyal, counsel for the Electricity Department to obtain instructions as to whether final assessment order has been passed in the instant case or not and, in case, it has been passed, he shall produce copy of the said order and also demonstrate how the procedure under the U.P. Electricity Supply Code, 2005 was followed.

2. List as fresh on 15.03.2024.

Order Date :- 29.2.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Shri Manu Ghildyal, counsel for the Electricity Department prays for and is granted one week further time to complete his instruction.

2. Put up as fresh on 1 April 2024.

Order Date :- 15.3.2024

Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. Despite time having been granted twice to Sri Manu Ghildyal, learned counsel for the respondent-Electricity Department to obtain instructions, the same is not forthcoming. He seeks further time.
2. By way of last opportunity, further time is granted till the next date of listing.
3. List as fresh on 10.4.2024.
4. If by that date instructions are not furnished, we shall be compelled to direct for personal appearance of the concerned official.
5. In the meantime, no coercive action shall be taken against the petitioner on basis of the impugned recovery proceedings.
6. Sri Manu Ghildyal undertakes to communicate the instant order to the concerned official for necessary compliance.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.4.2024

Jaideep/-

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Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The petitioner has challenged a notice issued to her late husband Balveer Singh by the Executive Engineer, Electricity Distribution Division - I, Kanpur, intimating Balveer Singh that he is required to pay Rs. 8,18,423/- under Section 135 of the Electricity Act, 2003 for being involved in theft of electricity and in case he does not avail the benefit of OTS Scheme, the notice would be treated to be notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Rules, 1958.

2. Sri Manu Ghildyal, learned counsel for the respondent-Electricity Department, states that the impugned notice is only an intimation to the petitioner to avail the benefit of OTS Scheme. He submits that as of now, only a provisional assessment notice dated 11.3.2024 has been issued and that final assessment order will be passed after considering the reply, if any, submitted by the petitioner and in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

3. In view of the aforesaid stand of the respondent-Electricity Department, we dispose of the instant petition with liberty to the petitioner to file objections in reply to the provisional assessment notice and in which event, the Assessing Officer shall proceed in the matter strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.4.2024

Jaideep/-